

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2995
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403.03, Arizona Revised Statutes, is amended
3 to read:

4 25-403.03. Domestic violence and child abuse; court
5 considerations; definitions

6 ~~A. Notwithstanding subsection D of this section, joint legal~~
7 ~~decision-making shall not be awarded if the court makes a finding of the~~
8 ~~existence of significant domestic violence pursuant to section 13-3601 or~~
9 ~~if the court finds by a preponderance of the evidence that there has been~~
10 ~~a significant history of domestic violence.~~

11 ~~B. The court shall consider evidence of domestic violence as being~~
12 ~~contrary to the best interests of the child. The court shall consider the~~
13 ~~safety and well-being of the child and of the victim of the act of~~
14 ~~domestic violence to be of primary importance. The court shall consider a~~
15 ~~perpetrator's history of causing or threatening to cause physical harm to~~
16 ~~another person.~~

17 ~~C. To determine if a person has committed an act of domestic~~
18 ~~violence the court, subject to the rules of evidence, shall consider all~~
19 ~~relevant factors including the following:~~

20 ~~1. Findings from another court of competent jurisdiction.~~

21 ~~2. Police reports.~~

22 ~~3. Medical reports.~~

23 ~~4. Records of the department of child safety.~~

24 ~~5. Domestic violence shelter records.~~

25 ~~6. School records.~~

26 ~~7. Witness testimony.~~

27 ~~D. If the court determines that a parent who is seeking sole or~~
28 ~~joint legal decision-making has committed an act of domestic violence~~

~~1 against the other parent, there is a rebuttable presumption that an award
2 of sole or joint legal decision-making to the parent who committed the act
3 of domestic violence is contrary to the child's best interests. This
4 presumption does not apply if both parents have committed an act of
5 domestic violence. For the purposes of this subsection, a person commits
6 an act of domestic violence if that person does any of the following:~~

~~7 1. Intentionally, knowingly or recklessly causes or attempts to
8 cause sexual assault or serious physical injury.
9 2. Places a person in reasonable apprehension of imminent serious
10 physical injury to any person.
11 3. Engages in a pattern of behavior for which a court may issue an
12 ex parte order to protect the other parent who is seeking child custody or
13 to protect the child and the child's siblings.
14 E. To determine if the parent has rebutted the presumption the
15 court shall consider all of the following:
16 1. Whether the parent has demonstrated that being awarded sole or
17 joint legal decision-making or substantially equal parenting time is in
18 the child's best interests.
19 2. Whether the parent has successfully completed a batterer's
20 prevention program.
21 3. Whether the parent has successfully completed a program of
22 alcohol or drug abuse counseling, if the court determines that counseling
23 is appropriate.
24 4. Whether the parent has successfully completed a parenting class,
25 if the court determines that a parenting class is appropriate.
26 5. If the parent is on probation, parole or community supervision,
27 whether the parent is restrained by a protective order that was granted
28 after a hearing.
29 6. Whether the parent has committed any further acts of domestic
30 violence.
31 F. If the court finds that a parent has committed an act of
32 domestic violence, that parent has the burden of proving to the court's
33 satisfaction that parenting time will not endanger the child or
34 significantly impair the child's emotional development. If the parent
35 meets this burden to the court's satisfaction, the court shall place
36 conditions on parenting time that best protect the child and the other
37 parent from further harm. The court may:
38 1. Order that an exchange of the child must occur in a protected
39 setting as specified by the court.
40 2. Order that an agency specified by the court must supervise
41 parenting time. If the court allows a family or household member to
42 supervise parenting time, the court shall establish conditions that this
43 person must follow during parenting time.
44 3. Order the parent who committed the act of domestic violence to
45 attend and complete, to the court's satisfaction, a program of
46 intervention for perpetrators of domestic violence and any other
47 counseling the court orders.~~

1 ~~4. Order the parent who committed the act of domestic violence to~~
2 ~~abstain from possessing or consuming alcohol or controlled substances~~
3 ~~during parenting time and for twenty-four hours before parenting time.~~
4 ~~5. Order the parent who committed the act of domestic violence to~~
5 ~~pay a fee for the costs of supervised parenting time.~~
6 ~~6. Prohibit overnight parenting time.~~
7 ~~7. Require a bond from the parent who committed the act of domestic~~
8 ~~violence for the child's safe return.~~
9 ~~8. Order that the address of the child and the other parent remain~~
10 ~~confidential.~~
11 ~~9. Impose any other condition that the court determines is~~
12 ~~necessary to protect the child, the other parent and any other family or~~
13 ~~household member.~~
14 ~~6. The court shall not order joint counseling between a victim and~~
15 ~~the perpetrator of domestic violence. The court may provide a victim with~~
16 ~~written information about available community resources related to~~
17 ~~domestic violence.~~
18 A. IN ANY LEGAL DECISION-MAKING OR PARENTING TIME MATTER, THE COURT
19 SHALL CONSIDER DOMESTIC VIOLENCE AS CONTRARY TO THE BEST INTERESTS OF THE
20 CHILD AND SHALL ASSIGN PRIMARY IMPORTANCE TO THE SAFETY AND WELL-BEING OF
21 BOTH THE CHILD AND DOMESTIC VIOLENCE VICTIM. IF AN EXPRESS OR IMPLIED
22 CONFLICT ARISES BETWEEN THE REQUIREMENTS OF THIS SECTION AND A COMPETING
23 PRESUMPTION, MANDATE OR PUBLIC POLICY IN THIS TITLE, THE PROVISIONS OF
24 THIS SECTION TAKE PRIORITY.
25 B. IN ANY LEGAL DECISION-MAKING OR PARENTING TIME MATTER, THE COURT
26 SHALL MAKE SPECIFIC AND DETAILED FINDINGS ON THE RECORD ABOUT EACH FACTOR
27 THAT IS REQUIRED BY THIS SECTION. THE COURT SHALL EXPLAIN IN DETAIL WHY
28 THE COURT'S FINDINGS REGARDING DOMESTIC VIOLENCE SERVE THE CHILD'S BEST
29 INTERESTS, INCLUDING THE PRESUMPTION PRESCRIBED IN SUBSECTION F OF THIS
30 SECTION AND ANY REBUTTAL TO THE PRESUMPTION THAT IS OFFERED PURSUANT TO
31 SUBSECTION G OF THIS SECTION. ON APPEAL, THE LEGAL SUFFICIENCY OF EACH
32 FINDING AND EXPLANATION SHALL BE REVIEWED DE NOVO. THE COURT'S FINDINGS
33 MUST ADDRESS ALL OF THE FOLLOWING:
34 1. COERCIVE CONTROL.
35 2. EVIDENCE THAT MAY SUPPORT A DOMESTIC VIOLENCE CLAIM.
36 3. THE IMPACT, SEVERITY AND CIRCUMSTANCES OF AN ACT OR ACTS OF
37 DOMESTIC VIOLENCE THAT HAVE OCCURRED.
38 4. THE MANDATORY PRESUMPTION AGAINST AWARDED LEGAL DECISION-MAKING
39 OR PARENTING TIME TO A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC
40 VIOLENCE.
41 5. WHETHER A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC
42 VIOLENCE REBUTTED THE MANDATORY PRESUMPTION UNDER SUBSECTION F OF THIS
43 SECTION.
44 C. A CLAIM OF AN ACT OR ACTS OF DOMESTIC VIOLENCE SHALL BE
45 ESTABLISHED BY A PREPONDERANCE OF THE EVIDENCE. CORROBORATION FROM
46 EXHIBITS OR WITNESS TESTIMONY IS NOT REQUIRED. SUBJECT TO THE EVIDENTIARY

1 STANDARD APPLIED TO THAT PROCEEDING PURSUANT TO THE ARIZONA RULES OF
2 FAMILY LAW PROCEDURE, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:

3 1. FACTUAL DETERMINATIONS OF AN ACT OR ACTS OF DOMESTIC VIOLENCE
4 FROM A COURT OF COMPETENT JURISDICTION.

5 2. EVIDENCE THAT IS COLLECTED AND REPORTS THAT ARE PREPARED BY A
6 LAW ENFORCEMENT AGENCY, THE DEPARTMENT OF CHILD SAFETY AND ANY OTHER
7 GOVERNMENT AGENCY.

8 3. THE ALLEGED VICTIM'S MEDICAL OR BEHAVIORAL HEALTH RECORDS, IF
9 THE VICTIM WAIVES THE ASSOCIATED PRIVILEGE OR OTHER RIGHT TO
10 CONFIDENTIALITY.

11 4. RECORDS FROM A SHELTER FOR VICTIMS OF DOMESTIC VIOLENCE AS
12 DEFINED IN SECTION 36-3001.

13 5. EDUCATIONAL AND SCHOOL RECORDS.

14 6. A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE AGAINST ANY PERSON
15 BY THE PARENT WHO IS THE SUBJECT OF THE ALLEGATION OF COMMITTING AN ACT OR
16 ACTS OF DOMESTIC VIOLENCE.

17 7. WITNESS TESTIMONY.

18 D. IF THE COURT DETERMINES THAT A PARENT COMMITTED AN ACT OR ACTS
19 OF DOMESTIC VIOLENCE, THE COURT SHALL CONSIDER AND WEIGH ALL OF THE
20 FOLLOWING NONEXCLUSIVE FACTORS, AND ANY OTHER RELEVANT CONSIDERATIONS,
21 WHEN ENTERING AN AWARD OF LEGAL DECISION-MAKING, A PARENTING TIME SCHEDULE
22 AND OTHER FEATURES OF THE PARENTING PLAN REQUIRED BY SECTION 25-403.02.
23 THE COURT SHALL DETERMINE WHETHER THE ACT OR ACTS OF DOMESTIC VIOLENCE
24 MEET ANY OF THE FOLLOWING:

25 1. RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL TRAUMA ON THE
26 OTHER PARENT OR CHILD.

27 2. INVOLVED THE THREAT OR USE OF A FIREARM OR OTHER DANGEROUS
28 WEAPON.

29 3. INVOLVED THE THREAT OR USE OF STRANGULATION AS DESCRIBED IN
30 SECTION 13-1204, SUBSECTION B, PARAGRAPH 1.

31 4. INVOLVED MULTIPLE FORMS OF COERCIVE CONTROL, INCLUDING WHETHER
32 PHYSICAL VIOLENCE, NO MATTER HOW INFREQUENT, WAS USED TO INTENSIFY THE
33 IMPACT OF OTHER FORMS OF COERCIVE CONTROL.

34 5. COMPROMISED THE VICTIM'S EDUCATION, EMPLOYMENT OR CAREER GOALS.

35 6. SIGNIFICANTLY DAMAGED THE VICTIM'S REPUTATION OR RELATIONSHIPS
36 WITH FAMILY, FRIENDS OR OTHERS.

37 7. CREATED A QUESTION AS TO WHETHER THE PARENT WHO COMMITTED THE
38 ACT OR ACTS OF DOMESTIC VIOLENCE CAN SERVE AS A SUITABLE ROLE MODEL FOR
39 THE CHILD, INCLUDING WITH RESPECT TO PARENTING TIME.

40 8. REVEALED A DISDAIN FOR THE OTHER PARENT OR CHILD THAT WOULD
41 COMPLICATE OR PREVENT EFFECTIVE LEGAL DECISION-MAKING.

42 9. ARE DENIED, DEFLECTED OR MINIMIZED DURING TREATMENT, FORENSIC
43 ASSESSMENT, FORMAL DISCOVERY OR COURTROOM PROCEEDINGS BY THE PARENT WHO
44 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE.

45 10. OCCURRED OVER A PERIOD OF TIME AND WITH SUFFICIENT SEVERITY OR
46 FREQUENCY THAT THE PASSAGE OF TIME OR REMOTENESS OF AN EARLIER ACT OR ACTS

1 OF DOMESTIC VIOLENCE CONSTITUTE AN AGGRAVATING AND NOT A MITIGATING
2 FACTOR.

3 E. WHEN WEIGHING EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC
4 VIOLENCE, THE COURT MAY CONSIDER THE PASSAGE OF TIME OR PRIOR JUDICIAL
5 REVIEW. THE COURT MAY NOT REFUSE EVIDENCE OF A COLLATERAL ACT OR ACTS OF
6 DOMESTIC VIOLENCE ON THE GROUNDS THAT THE ALLEGED ACT OR ACTS OF DOMESTIC
7 VIOLENCE OR A RELATED LEGAL CLAIM HAS BEEN DECIDED, PREDATES THE LAST
8 DECREE OR COULD HAVE BEEN LITIGATED AT ANOTHER TIME OR PLACE. THE COURT
9 SHALL EVALUATE WHETHER EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC
10 VIOLENCE DOES ANY OF THE FOLLOWING:

11 1. ESTABLISHES RECURRING BEHAVIOR BY THE PARENT ALLEGED TO HAVE
12 COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE, INCLUDING COERCIVE CONTROL.

13 2. PROVES THE MOTIVE, OPPORTUNITY, INTENT, PREPARATION, PLAN,
14 KNOWLEDGE, IDENTITY OR ABSENCE OF MISTAKE OR ACCIDENT BY THE PARENT
15 ALLEGED TO HAVE COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE.

16 3. EXPLAINS AN OTHERWISE EXCESSIVE RESPONSE BY THE ALLEGED VICTIM
17 TO A MORE RECENT EVENT AS WELL AS OTHER REACTIVE OR PROTECTIVE BEHAVIOR BY
18 THE ALLEGED VICTIM.

19 F. IF THE COURT DETERMINES THAT A PARENT COMMITTED AN ACT OR ACTS
20 OF DOMESTIC VIOLENCE, THERE IS A MANDATORY REBUTTABLE PRESUMPTION THAT AN
21 AWARD OF LEGAL DECISION-MAKING OR PARENTING TIME TO THE PARENT WHO
22 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE IS CONTRARY TO THE CHILD'S
23 BEST INTERESTS. THE COURT MAY NOT REQUIRE THE VICTIM OR CHILD TO PROVE
24 THAT SHARED LEGAL DECISION-MAKING OR PARENTING TIME WOULD HARM THE CHILD.
25 A REBUTTABLE PRESUMPTION DOES NOT ARISE IF MUTUAL ACTS OF DOMESTIC
26 VIOLENCE OCCURRED. THE COURT MAY NOT DESCRIBE AN ACT OR ACTS OF DOMESTIC
27 VIOLENCE AS MUTUAL OR ENTER A LEGAL DECISION-MAKING OR PARENTING TIME
28 ORDER THAT TREATS DOMESTIC VIOLENCE AS MUTUAL, UNLESS THE EVIDENCE
29 ESTABLISHES THAT BOTH PARENTS HAD THE SAME MOTIVE FOR THEIR ACTIONS,
30 LACKED JUSTIFICATION TO SIMILAR DEGREES AND INFLECTED COMPARABLE HARM.

31 G. TO DETERMINE WHETHER THE PARENT WHO COMMITTED AN ACT OR ACTS OF
32 DOMESTIC VIOLENCE HAS REBUTTED THE MANDATORY PRESUMPTION PRESCRIBED IN
33 SUBSECTION F OF THE SECTION, THE COURT SHALL DO ALL OF THE FOLLOWING:

34 1. REVIEW THE COURT'S FINDINGS PRESCRIBED BY SUBSECTION D OF THIS
35 SECTION AND APPLY THE COURT'S FINDINGS TO THE REBUTTAL DETERMINATION.

36 2. CONSIDER A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE BY THE
37 PARENT AGAINST ANYONE.

38 3. NOT TREAT ANY OF THE FOLLOWING CONSIDERATIONS AS MITIGATION OR
39 RELEVANT TO THE REBUTTAL OF THE MANDATORY PRESUMPTION:

40 (a) THE CHILD'S ABSENCE FROM THE LOCATION WHERE THE ACT OR ACTS OF
41 DOMESTIC VIOLENCE OCCURRED.

42 (b) THE CHILD'S UNAWARENESS THAT A PARENT COMMITTED THE ACT OR ACTS
43 OF DOMESTIC VIOLENCE.

44 (c) THE CHILD'S PREFERENCE FOR REINSTATING, MAINTAINING OR
45 INCREASING PARENTING TIME WITH A PARENT WHO COMMITTED THE ACT OR ACTS OF
46 DOMESTIC VIOLENCE.

1 4. CONSIDER THE PARENT'S ATTENDANCE AT A DOMESTIC VIOLENCE
2 TREATMENT PROGRAM. THE COURT MAY NOT CONSIDER A CERTIFICATE OF COMPLETION
3 ALONE AS PROOF OF REHABILITATION. A PARENT WHO WISHES TO USE ATTENDANCE
4 AT A DOMESTIC VIOLENCE TREATMENT PROGRAM AS REBUTTAL EVIDENCE MUST DO ALL
5 OF THE FOLLOWING:

6 (a) WAIVE THE ASSOCIATED STATUTORY PRIVILEGE OR OTHER
7 CONFIDENTIALITY NECESSARY TO RELEASE THAT PERSON'S TREATMENT RECORDS TO
8 THE COURT AND THE VICTIM.

9 (b) ESTABLISH THAT THE TREATMENT PROGRAM WAS BOTH RELEVANT AND
10 PROPORTIONATE TO THE ACT OR ACTS OF DOMESTIC VIOLENCE FOR WHICH THE PARENT
11 WAS ADJUDICATED.

12 (c) DEMONSTRATE AN UNDERSTANDING OF HOW THE PARENT'S ACT OR ACTS OF
13 DOMESTIC VIOLENCE HARMED THE FAMILY.

14 (d) PROVE THAT THE TREATMENT PROGRAM ADDRESSED AND HELPED REDUCE
15 ANY TENDENCY TO MINIMIZE OR RATIONALIZE THE ACT OR ACTS OF DOMESTIC
16 VIOLENCE.

17 5. EVALUATE WHETHER A PARENT'S CHOSEN TREATMENT PROGRAM WAS
18 RELEVANT AND PROPORTIONATE TO THAT PERSON'S HISTORY OF DOMESTIC VIOLENCE.
19 IN MAKING THIS EVALUATION, THE COURT SHALL CONSIDER THE CRITERIA OUTLINED
20 IN THE ARIZONA ADMINISTRATIVE CODE THAT GOVERNS TREATMENT STANDARDS FOR
21 MISDEMEANOR DOMESTIC VIOLENCE OFFENDERS.

22 H. IF THE PARENT WHO COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE
23 FAILS TO OVERCOME THE MANDATORY PRESUMPTION PRESCRIBED IN SUBSECTION F OF
24 THIS SECTION, THE COURT SHALL DO ALL OF THE FOLLOWING:

25 1. NOT GRANT JOINT LEGAL DECISION-MAKING OR SOLE LEGAL
26 DECISION-MAKING AUTHORITY TO THAT PARENT.

27 2. IMPOSE RESTRICTIONS ON THE MANNER AND FREQUENCY OF THAT PARENT'S
28 INTERACTIONS WITH THE CHILD THAT ARE CONSISTENT WITH THE PROVEN ACT OR
29 ACTS OF DOMESTIC VIOLENCE, INCLUDING ANY OF THE FOLLOWING:

30 (a) ORDER THAT AN EXCHANGE OF THE CHILD OCCUR IN A PROTECTED
31 LOCATION OR A SAFE EXCHANGE LOCATION AS PRESCRIBED IN SECTION 25-403.10
32 THAT IS SPECIFIED BY THE COURT.

33 (b) LIMIT PARENTING TIME, INCLUDING A PROHIBITION ON OVERNIGHT
34 PARENTING TIME WITH THE CHILD.

35 (c) DESIGNATE A PROFESSIONAL AGENCY OR ONE OR MORE PERSONS TO
36 SUPERVISE PARENTING TIME. THE COURT MAY NOT APPOINT THE VICTIM OF THE ACT
37 OR ACTS OF DOMESTIC VIOLENCE TO SERVE AS THE SUPERVISOR, WHETHER ALONE OR
38 WITH ANOTHER PERSON. THE COURT MAY NOT APPOINT A PERSON TO SUPERVISE
39 PARENTING TIME UNLESS THE PARENT BEING SUPERVISED AFFIRMS TO THE COURT
40 THAT THE APPOINTED SUPERVISOR WILL DO ALL OF THE FOLLOWING:

41 (i) RECEIVE AND READ THE COURT'S ORDER.

42 (ii) PROVIDE A RELIABLE TELEPHONE NUMBER, EMAIL ADDRESS AND
43 RESIDENTIAL ADDRESS TO BOTH PARENTS.

44 (iii) INTERVENE AND CONTACT AN APPROPRIATE LAW ENFORCEMENT AGENCY,
45 THE DEPARTMENT OF CHILD SAFETY AND THE OTHER PARENT IF THE SUPERVISED
46 PARENT'S BEHAVIOR ENDANGERS THE CHILD OR BECOMES PSYCHOLOGICALLY ABUSIVE.

1 (iv) APPEAR FOR FUTURE COURT PROCEEDINGS AND TESTIFY REGARDING THE
2 SUPERVISION.

3 (d) ORDER THE PARENT WHO COMMITTED THE ACT OR ACTS OF DOMESTIC
4 VIOLENCE TO PAY A FEE FOR THE COSTS OF SUPERVISED PARENTING TIME.

5 (e) SUSPEND ACCESS TO THE CHILD, IN ANY FORM, UNTIL THE PARENT WHO
6 COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE CAN PETITION FOR A
7 MODIFICATION OF LEGAL DECISION-MAKING OR PARENTING TIME PURSUANT TO
8 SECTION 25-411.

9 (f) ORDER THE PARENT WHO COMMITTED THE ACT OR ACTS OF DOMESTIC
10 VIOLENCE TO ATTEND AND COMPLETE A PROGRAM OF INTERVENTION FOR PERPETRATORS
11 OF DOMESTIC VIOLENCE AND ANY OTHER COUNSELING THE COURT ORDERS.

12 (g) IF THE COURT FINDS THAT THE PARENT WHO COMMITTED THE ACT OR
13 ACTS OF DOMESTIC VIOLENCE HAS ALSO ABUSED ALCOHOL, OTHER INTOXICANTS OR
14 CONTROLLED SUBSTANCES, THE COURT MAY ORDER THAT PARENT TO ABSTAIN FROM
15 POSSESSING OR CONSUMING ALCOHOL, OTHER INTOXICANTS OR CONTROLLED
16 SUBSTANCES.

17 (h) REQUIRE A BOND FOR THE CHILD'S SAFE RETURN FROM THE PARENT WHO
18 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE.

19 (i) ORDER THAT THE ADDRESS OF THE CHILD AND OTHER PARENT REMAIN
20 CONFIDENTIAL.

21 (j) IMPOSE ANY OTHER CONDITION THAT THE COURT DETERMINES IS
22 NECESSARY TO PROTECT THE CHILD, THE OTHER PARENT AND ANY OTHER FAMILY OR
23 HOUSEHOLD MEMBER.

24 I. THE COURT MAY NOT ORDER A VICTIM OF DOMESTIC VIOLENCE, WHETHER
25 THE CHILD OR A PARENT, TO JOIN THE PARENT WHO COMMITTED AN ACT OR ACTS OF
26 DOMESTIC VIOLENCE IN ANY INPATIENT OR OUTPATIENT TREATMENT PROGRAM,
27 COUNSELING PROGRAM OR FORENSIC ASSESSMENT, WHETHER TELEPHONIC, VIRTUAL OR
28 IN PERSON.

29 ~~H.~~ J. The court may request or order the services of the
30 department of child safety if the court believes that a child may be the
31 victim of child abuse or neglect as defined in section 8-201.

32 ~~I.~~ K. In determining whether the absence or relocation of a parent
33 shall be weighed against that parent in determining legal decision-making
34 or parenting time, the court may consider whether the absence or
35 relocation was caused by an act of domestic violence by the other parent.

36 L. FOR THE PURPOSES OF THIS SECTION:

37 1. "COERCIVE CONTROL":

38 (a) MEANS A PATTERN OF THREATENING, HUMILIATING OR INTIMIDATING
39 ACTIONS THAT IS USED TO HARM, PUNISH OR FRIGHTEN A PERSON.

40 (b) INCLUDES ALL OF THE FOLLOWING:

41 (i) A PATTERN OF BEHAVIOR THAT TAKES AWAY A PERSON'S LIBERTY OR
42 FREEDOM.

43 (ii) STRIPPING A PERSON'S SENSE OF SELF, BODILY INTEGRITY AND HUMAN
44 RIGHTS.

45 (iii) ISOLATING A PERSON FROM FRIENDS AND FAMILY.

46 (iv) DEPRIVING A PERSON OF INDEPENDENCE.

47 (v) REGULATING A PERSON'S EVERYDAY BEHAVIOR.

1 (vi) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S
2 FINANCES, ECONOMIC RESOURCES OR ACCESS TO SERVICES, OR THOSE OF THE
3 PERSON'S CHILD OR RELATIVE.

4 (vii) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S
5 ACTIVITIES, COMMUNICATIONS OR MOVEMENTS, INCLUDING THROUGH THE USE OF
6 TECHNOLOGY, OR THOSE OF THE PERSON'S CHILD OR RELATIVE.

7 (viii) NAME-CALLING, DEGRADING OR DEMEANING A PERSON OR THE
8 PERSON'S CHILD OR RELATIVE ON A FREQUENT BASIS.

9 (ix) THREATENING TO HARM OR KILL A PERSON OR THE PERSON'S CHILD OR
10 RELATIVE, INCLUDING WEARING, ACCESSING, DISPLAYING, USING OR CLEANING A
11 WEAPON IN AN INTIMIDATING OR THREATENING MANNER.

12 (x) THREATENING TO COMMIT SUICIDE OR SELF HARM, WHEN USED AS A
13 METHOD OF COERCION, CONTROL, PUNISHMENT, INTIMIDATION OR RETALIATION
14 AGAINST A PERSON.

15 (xi) THREATENING TO HARM OR KILL AN ANIMAL THAT A PERSON OR THE
16 PERSON'S CHILD OR RELATIVE HAS AN EMOTIONAL BOND WITH.

17 (xii) THREATENING TO PUBLISH A PERSON'S SENSITIVE PERSONAL
18 INFORMATION, INCLUDING SEXUALLY EXPLICIT MATERIAL, OR THOSE OF THE
19 PERSON'S CHILD OR RELATIVE.

20 (xiii) THREATENING TO MAKE REPORTS TO LAW ENFORCEMENT AUTHORITIES
21 WITHOUT REASONABLE CAUSE.

22 (xiv) DAMAGING A PERSON'S PROPERTY OR HOUSEHOLD GOODS, OR THOSE OF
23 THE PERSON'S CHILD OR RELATIVE.

24 (xv) THREATENING A PERSON OR THE PERSON'S CHILD OR RELATIVE WITH
25 DEPORTATION, CONTACTING AUTHORITIES BASED ON PERCEIVED OR ACTUAL
26 IMMIGRATION STATUS, WITHHOLDING ESSENTIAL DOCUMENTS REQUIRED FOR
27 IMMIGRATION OR THREATENING TO WITHDRAW OR INTERFERE WITH AN ACTIVE
28 IMMIGRATION APPLICATION OR PROCESS.

29 (xvi) FORCING A PERSON OR THE PERSON'S CHILD OR RELATIVE TO TAKE
30 PART IN CRIMINAL ACTIVITIES OR CHILD ABUSE.

31 2. "COLLATERAL ACT" MEANS CONDUCT THAT, IN TIME, LOCATION, SEQUENCE
32 AND CAUSATION, IS SUBSTANTIALLY DISTINCT FROM THE OCCURRENCES OR ACTS AT
33 ISSUE BEFORE THE COURT.

34 3. "DOMESTIC VIOLENCE":

35 (a) MEANS, WHEN PERPETRATED BY ONE PARENT AGAINST THE OTHER PARENT
36 OR AGAINST A MINOR CHILD LIVING IN EITHER PARENT'S HOUSEHOLD, EITHER OF
37 THE FOLLOWING:

38 (i) DOMESTIC VIOLENCE AS DEFINED IN SECTION 13-3601.

39 (ii) COERCIVE CONTROL.

40 (b) DOES NOT INCLUDE DEFENSE OF SELF OR ANOTHER IF THE DEFENSIVE
41 ACTS WERE PROPORTIONATE TO THE ASSAULT AND THE PARENT CLAIMING
42 SELF-DEFENSE DID NOT PROVOKE THE ALTERCATION.

1 Sec. 2. Section 25-404, Arizona Revised Statutes, is amended to
2 read:

3 25-404. Temporary orders

4 A. A party to a legal decision-making and parenting time proceeding
5 may move for a temporary order. This motion must be supported by
6 pleadings as provided in section 25-411. The court may award temporary
7 legal decision-making and parenting time under the standards of section
8 25-403 after a hearing, or, if there is no objection, solely on the basis
9 of the pleadings.

10 B. If a proceeding for dissolution of marriage or legal separation
11 is dismissed, any temporary legal decision-making or parenting time order
12 is vacated unless a parent or the child's custodian moves that the
13 proceeding continue as a legal decision-making or parenting time
14 proceeding and the court finds, after a hearing, that the circumstances of
15 the parents and the best interest of the child require that a legal
16 decision-making or parenting time plan decree be issued.

17 C. If a legal decision-making or parenting time proceeding
18 commenced in the absence of a petition for dissolution of marriage or
19 legal separation is dismissed, any temporary ~~custody~~ LEGAL DECISION-MAKING
20 OR PARENTING TIME order thereby is vacated.

21 D. IF A PARTY TO A PROCEEDING FOR A TEMPORARY ORDER FOR LEGAL
22 DECISION-MAKING OR PARENTING TIME PURSUANT TO THIS SECTION ALLEGES THAT
23 THE OTHER PARTY COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED
24 IN SECTION 25-403.03, THE COURT SHALL MAKE WRITTEN FINDINGS REGARDING THE
25 ALLEGATION OF THE ACT OR ACTS OF DOMESTIC VIOLENCE PURSUANT TO THE
26 REQUIREMENTS OF SECTION 25-403.03.

27 Sec. 3. Section 25-411, Arizona Revised Statutes, is amended to
28 read:

29 25-411. Modification of legal decision-making or parenting
30 time; affidavit; contents; military families; acts
31 of domestic violence

32 A. A person shall not make a motion to modify a legal
33 decision-making or parenting time decree earlier than one year after its
34 date, unless the court ~~permits~~ ALLOWS it to be made on the basis of
35 affidavits that there is reason to believe the child's present environment
36 may seriously endanger the child's physical, mental, moral or emotional
37 health. At any time after a joint legal decision-making order is entered,
38 a parent may petition the court for modification of the order on the basis
39 of evidence that domestic violence involving a violation of section
40 13-1201 or 13-1204, spousal abuse or child abuse occurred since the entry
41 of the joint legal decision-making order. Six months after a joint legal
42 decision-making order is entered, a parent may petition the court for
43 modification of the order based on the failure of the other parent to
44 comply with the provisions of the order. A motion or petition to modify
45 an order shall meet the requirements of this section. Except as otherwise
46 provided in this section, if a parent is a member of the United States
47 armed forces, the court shall consider the terms of that parent's military

1 family care plan to determine what is in the child's best interest during
2 that parent's military deployment.

3 B. If the parent with whom the parent's child resides a majority of
4 the time receives temporary duty, deployment, activation or mobilization
5 orders from the United States military that involve moving a substantial
6 distance away from the parent's residence, a court shall not enter a final
7 order modifying parental rights and responsibilities and parent-child
8 contact in an existing order until ninety days after the deployment ends,
9 unless a modification is agreed to by the deploying parent.

10 C. The court shall not consider a parent's absence caused by
11 deployment or mobilization or the potential for future deployment or
12 mobilization as the sole factor supporting a real, substantial and
13 unanticipated change in circumstances pursuant to this section.

14 D. On motion of a deploying or nondeploying, mobilizing or absent
15 military parent, the court, after a hearing, shall enter a temporary order
16 modifying parental rights and responsibilities or parent-child contact
17 during the period of deployment or mobilization if:

18 1. A military parent who has legal decision-making or parenting
19 time pursuant to an existing court order has received notice from military
20 leadership that the military parent will deploy or mobilize in the near
21 future.

22 2. The deployment or mobilization would have a material effect on
23 the military parent's ability to exercise parental rights and
24 responsibilities or parent-child contact.

25 E. On motion of a deploying parent, if reasonable advance notice is
26 given and good cause is shown, the court shall allow that parent to
27 present testimony and evidence by electronic means with respect to
28 parenting time or parent-child contact matters instituted pursuant to this
29 section if the deployment of that parent has a material effect on that
30 parent's ability to appear in person at a regularly scheduled hearing.
31 For the purposes of this subsection, "electronic means" includes
32 communication by telephone or video teleconference.

33 F. The court shall hear motions for modification because of
34 deployment as expeditiously as possible.

35 G. If a military parent receives military temporary duty,
36 deployment, activation or mobilization orders that involve moving a
37 substantial distance away from the military parent's residence or that
38 otherwise have a material effect on the military parent's ability to
39 exercise parenting time, at the request of the military parent, for the
40 duration of the military parent's absence the court may delegate the
41 military parent's parenting time, or a portion of that time, to a child's
42 family member, including a stepparent, or to another person who is not the
43 child's parent but who has a close and substantial relationship to the
44 minor child, if the court determines that is in the child's best interest.
45 The court shall not allow the delegation of parenting time to a person who
46 would be subject to limitations on parenting time. The parties shall
47 attempt to resolve disputes regarding delegation of parenting time through

1 the dispute resolution process specified in their parenting plan, unless
2 excused by the court for good cause shown. A court order pursuant to this
3 subsection does not establish separate rights to parenting time for a
4 person other than a parent.

5 H. All temporary modification orders pursuant to this section shall
6 include a specific transition schedule to facilitate a return to the
7 predeployment order within ten days after the deployment ends, taking into
8 consideration the child's best interests.

9 I. A decree or order that a court enters in contemplation of or
10 during the military deployment of a parent outside of the continental
11 United States shall specifically reference the deployment and include
12 provisions governing the legal decision-making or parenting time
13 arrangements, or both, of the minor child after the deployment ends.
14 Either parent may file a petition with the court after the deployment ends
15 to modify the decree or order, in compliance with subsection ~~L~~ M of this
16 section. The court shall hold a hearing or conference on the petition
17 within thirty days after the petition is filed.

18 J. The court may modify an order granting or denying parenting time
19 rights whenever modification would serve the best interest of the child,
20 but the court shall not restrict a parent's parenting time rights unless
21 it finds that the parenting time would endanger seriously the child's
22 physical, mental, moral or emotional health.

23 K. If after a legal decision-making or parenting time order is in
24 effect one of the parents is charged with a dangerous crime against
25 children as defined in section 13-705, child molestation as defined in
26 section 13-1410 or an act of domestic violence as prescribed in section
27 13-3601 in which the victim is a minor, the other parent may petition the
28 court for an expedited hearing. Pending the expedited hearing, the court
29 may suspend parenting time or change legal decision-making ex parte.

30 L. AN ALLEGATION OF AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED
31 IN SECTION 25-403.03 SHALL BE A PRIMARY FACTOR IN THE COURT'S
32 CONSIDERATION OF MODIFICATION OF A LEGAL DECISION-MAKING OR PARENTING TIME
33 ORDER. THE COURT SHALL ALLOW A PARENT TO PRESENT EVIDENCE OF AN ACT OR
34 ACTS OF DOMESTIC VIOLENCE THAT OCCURRED BEFORE THE EXISTING LEGAL
35 DECISION-MAKING OR PARENTING TIME ORDER.

36 ~~L~~ M. To modify any type of legal decision-making or parenting
37 time order a person shall submit an affidavit or verified petition setting
38 forth detailed facts supporting the requested modification and shall give
39 notice, together with a copy of the affidavit or verified petition, to
40 other parties to the proceeding, who may file opposing affidavits. The
41 court shall deny the motion unless it finds that adequate cause for
42 hearing the motion is established by the pleadings, in which case it shall
43 set a date for hearing on why the requested modification should not be
44 granted.

45 ~~M~~ N. The court shall assess attorney fees and costs against a
46 party seeking modification if the court finds that the modification action
47 is vexatious and constitutes harassment.

1 ~~N~~. 0. Subsection ~~t~~ M of this section does not apply if the
2 requested relief is for the modification or clarification of parenting
3 time and not for a change of legal decision-making.

4 <<Sec. 4. Short title

5 [This act may be cited as the "Alec and Lydia Act".]>>

6 Enroll and engross to conform

7 Amend title to conform

And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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02/18/2026

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